

Visions of Community at the University of Berlin: Kant, Fichte, Schleiermacher

This article examines Kant, Fichte, and Schleiermacher on the university. The author argues that in their proposals for the new University of Berlin, Fichte and Schleiermacher advance an internal criticism of Kant's justification of the university, raising two problems for it. First, they see Kant's justification of the university as resting on a pernicious separation of the scholarly and civil communities—the ethical problem. Second, they doubt Kant's ability to establish the university as the optimal institutional form of higher education—the institutional problem. Overcoming these two problems, they contend, requires envisioning a more radical community to be established at the University of Berlin, one involving the communal formation of students, knowledge, scientific research, and society.

1. Introduction

On September 5, 1807, J. G. Fichte received an extraordinary letter from Karl Friedrich von Beyme, the chief cabinet officer of King Friedrich Wilhelm III. Commissioned by the King the previous day to “establish a general educational establishment [Lehranstalt] in *Berlin*” (Köpke 1860, 163), Beyme wrote enthusiastically to Fichte:

It will certainly be very welcome news to your Honor that His Majesty the King has decided to establish a general teaching establishment in Berlin. [...] Such an establishment in Berlin has long been my favorite idea. Now necessity is bringing it to fruition. You will certainly believe, without my express assurance, that I am counting particularly on your advice and support in this regard. No one feels as keenly as you what we need, and no one perceives this in its universality as you do. I therefore sincerely request that you direct your thoughts toward the most expedient implementation of the Royal intention. Neither the use nor the abuse that old establishments have to contend with imposes any shackles on us. Your mind can develop completely free from all constraints, and therefore I expect a perfect whole. (GA 3,6:173)

Fichte would not disappoint Beyme. Reassuring the privy councilor that “an organic whole already stands before my soul, and it only needs the pen to grasp it, which I will seize without hesitation” (GA 3,6:177), Fichte submitted his lengthy proposal to the minister in five installments throughout October 1807, entitled *Deduced Plan of a Higher Educational Establishment to Be Instituted in Berlin* (*Deducirter Plan einer zu Berlin zu errichtenden höhern Lebranstalt*).

However, Fichte did not compose his proposal in isolation. Kant's publication of the *Conflict of the Faculties* in 1797, combined with a general malaise surrounding German universities, manifested by declining student enrollments, had spurred a series of public reflections on the university by leading scholars, including explicit proposals for university reform, such as by J. J. Engel (1802), J. B. Erhard (1802), Schelling (1803), and Steffens (1809). Prussia's defeat by Napoleon in the Battle of

Jena and Auerstedt in 1806 and Napoleon's subsequent closure of the University of Halle exacerbated the issue, leading to a loss of what Wilhelm III had deemed in his *Cabinetsorde* "the most important and most perfect general teaching establishment" (Köpke 1860, 163). Famously, the direness of the situation had spurred the King to declare that "the state must replace with intellectual strength what it has lost in material resources" (Lenz 1910, 78), and it was this context in which Beyme had commissioned not only Fichte but also F. A. Wolf and T. A. H. Schmalz, previous Halle faculty in philology and law, respectively.¹

Catching wind of Beyme's request from his Halle colleagues, Schleiermacher hastily composed his own treatise on the university, *Occasional Thoughts on Universities in the German Sense* (*Gelegentliche Gedanken über Universitäten in deutschem Sinn*), which he published in March 1808. Between 1808 and 1809, Wilhelm von Humboldt would synthesize various proposals in his now-famous memorandum, *On the Internal Structure of the University in Berlin* (*Über die innere und äussere Organisation der höheren wissenschaftlichen Anstalten in Berlin*). When classes began at the University of Berlin in October 1810, it was Humboldt's plan that won the day. While other proposals for the new university had circulated, Schleiermacher's and, to a lesser degree, Fichte's proved to be the most influential.²

Beyme's request, and Fichte's and Schleiermacher's responses to it, are remarkable, even shocking. It is difficult to imagine another instance in the history of philosophy in which leading thinkers were granted such a direct influence in designing an institution and enjoyed so much success in having their plans realized. The model of higher education that emerged from this episode, known today as the modern research university, has become paradigmatic not only throughout Germany and Europe, but also in North America and throughout the world.³ Moreover, as Beyme's letter makes clear, this model was not merely designed by philosophers but, more importantly, by *philosophy*; each philosopher was tasked not only with redesigning the university from the ground up, but to do so in light of his philosophical commitments, or, as Fichte would put it, on the basis of his "general philosophical education" [*allgemeiner philosophischer Bildung*] (GA 3,6:181). What is fascinating about this episode in classical German philosophy is precisely this imbrication of idealism and institutional design.

Unsurprisingly, Fichte's and Schleiermacher's competing university reform proposals have garnered a fair deal of scholarly attention and have often been compared with one another.⁴ This literature has justifiably centered around a basic question: what is the connection between their

¹ Fichte had in fact already begun writing down his reflections on university reform prior to Beyme's request (GA 3,6:174–77).

² On the founding of the University of Berlin, see Lenz (1910, 24–304); McClelland (1980, 99–150); Howard (2006, 130–211); Purvis (2016, 89–102).

³ To be sure, the influence and ubiquity of the Humboldtian model of higher education should not be overstated. For a critical perspective on the "*mythos Humboldt*," see Ash (2006).

⁴ On Fichte's *Deduced Plan*, see James (2014); Zöller (2008); König (2021, 69–90). On Schleiermacher's *Occasional Thoughts*, see Zachhuber (2023); Howard (2006, 166–72).

respective proposals and the authors' philosophical commitments, between institutional design and idealism? Broadly, four strategies for explaining this connection are discernible.

The first explanatory strategy may be called “sociological” (Pozzo 2001, 98) or “political” (Piché 2010, 372). This strategy aims to explain the character of Fichte's and Schleiermacher's proposals as either reactions to external circumstances or as grounded in the author's pre-philosophical dispositions. For example, Ferry and Renaut (1979, 70) account for the difference between the two proposals by identifying them as emanating from their respective political attitudes—“authoritarian” (Fichte) and “liberal” (Schleiermacher). Similarly, Schmidt (2013, 161–62) portrays their proposals as reactions on the one hand to the French polytechnical model of higher education and on the other to the changing economic conditions at the time—the transition from an estates society (*ständische Gesellschaft*) to a modern bourgeois one (*bürgerliche Gesellschaft*).⁵ For these commentators, attempts to explain the nature of each proposal primarily in terms of the author's philosophical commitments are misguided, as it is the circumstances, modulated by self-interests and political prejudice, that drive his vision for university reform.

The remaining three explanatory strategies are unified in seeking to identify a deeper root or “philosophical ground” underlying the proposals (Piché 2010, 372). First, it has been suggested that their respective proposals derive directly from their most basic theoretical commitments—in a word, their *metaphysics*. Piché (2010), for example, argues that the basic character of the proposals originates from their diverging concepts of individuality at the heart of their metaphysics. Similarly, James (2014) argues that Fichte's *Deduced Plan* is “connected with his idealism” (487) because the character of university education developed therein corresponds to the nature of the *Wissenschaftslehre*, most notably its being a closed, rationally necessitated, and unitary system (504). On this version of the “philosophical ground” reading, there is a more or less continuous line between each thinker's substantive theoretical commitments and his vision for university reform.⁶

Second, many commentators have singled out *methodology* as underlying the difference in the two proposals (e.g., Arndt 1996, 1197–98). Such a methodological difference can be supposedly gleaned from their respective titles: Fichte's “deduced plan,” suggesting a systematic unfolding of the idea of the university, versus Schleiermacher's “occasional thoughts,” a haphazard collection of recommendations in accordance with the prevailing circumstances. Indeed, in the preface to his work, Schleiermacher himself suggests this methodological difference, asserting his proposal makes “no claim to scientific maturity or rigorous exposition” (OT 1/KGA 1,6:19), silently contrasting his method with what he imagines Fichte's to be. Yet, as I will argue below, this apparent difference is overblown, and, on closer consideration, Schleiermacher's proposal bears more systematicity than he suggests, and that Fichte's is more occasional than its title lets on. Both idealists should instead be

⁵ Likewise, Crouter (2005) defends a sociological explanation despite acknowledging that Schleiermacher's proposal is “couched in an ethical-social philosophy” (166).

⁶ Zöller (2008) also sees Fichte's *Deduced Plan* as “belong[ing]” to the “wider context of his first philosophy,” such that the basic characteristics of his proposal should be understood as its downstream consequences (106–8).

seen as undertaking the distinctive task of *institutional design*, which sits between systematic deduction and pragmatic intervention.

Finally, their proposals have been understood as in some way responding to Kant. In a late work entitled *The Conflict of the Faculties* (*Der Streit der Fakultäten*), Kant reacted to the censorship of *Religion Within the Boundaries of Mere Reason* by justifying the structure of the university and defending the autonomy of the lower faculty—philosophy—against interference from the state and the higher faculties of theology, law, and medicine. Kant’s *Conflict*, which thus mixes occasional and systematic considerations as is inextricable in institutional design, stands out as an obvious precursor to and stimulus for Fichte’s and Schleiermacher’s proposals (Crouter 2005, 161–62; Zachhuber 2023, 104–5). However, commentators have also identified other writings on history by Kant to be the central interlocutor in Fichte and Schleiermacher’s proposals, such as *Ideas for a Universal History* (Piché 2010, 375, 379–80) and *What is Enlightenment* (Schmidt 2013, 163), and others have even doubted whether Fichte and Schleiermacher knew Kant’s *Conflict* (Brandt 1987, 38–39).

To be sure, these explanatory strategies are not necessarily incompatible with one another. Generally speaking, there can be no doubt that a philosopher’s view on some practical matter can be the outcome *both* of her deeper philosophical commitments and the pressing political or pragmatic considerations of her time. Here there is room for multiple causality, and, indeed, such multidimensionality seems inescapable when explaining a philosopher’s approach to institutional design. In the case of Fichte and Schleiermacher, I have already indicated that commentators such as Piché (2010) who seek “deeper theoretical motivations” underlying their respective proposals also see them as responding to Kant to some degree (372). However, these strategies *do* become incompatible with one another when we add the further stipulation that they should identify a particular feature that is primary or *most* significant. With this stipulation in place, the different explanatory strategies really track incompatible emphasis, not incompatible causes. With this qualification in place, it makes good sense, at least provisionally, to distinguish between interpretative strategies prioritizing (a) sociological factors, (b) basic theoretical commitments, (c) methodology, and (d) the influence of a major predecessor.

Having canvassed the existing interpretations of Fichte’s and Schleiermacher’s proposals, I now wish to state my intended contribution. In this article, I will argue that in their proposals for the new university of Berlin, Fichte and Schleiermacher should be understood primarily as articulating a shared internal criticism of Kant’s *Conflict*. I will therefore defend a variety of (d). In particular, I will show that they raise two interrelated problems for Kant’s justification of the university’s existence. The first is the *ethical* problem. In his defense of the philosophy faculty, Kant must endorse the separation of what he calls the “scholarly community” from the “civil community” as necessary for defending the university. By contrast, Fichte and Schleiermacher see the university as precisely the institution tasked with overcoming the division of the two communities, and they therefore object to Kant’s strategy of premising the university’s justification on such a division.

The second problem is *institutional*. Kant’s defense of the philosophy faculty—the pursuit of truth for its own sake—bears no necessary tie to the university as the optimal institutional means for

its realization. The aim of pure research could just as well be realized by the French model of higher education, in which special schools replace universities, supplimented by academies of science.⁷ By contrast, Fichte and Schleiermacher design the university to be an essential and intermediary institution, standing above the schools yet below the academies. This intermediary position of the university, focused on forming the student to be capable of partaking in science (*Wissenschaft*), entails, on the one hand, the unity of teaching and research and, on the other, the university's vanguard position within society. By omitting any discussion of the university's role in teaching and forming students, not to mention the reciprocal effect of this formative process back onto the researcher herself and the university's capacity to exemplify the ideal of unity to the rest of society by instantiating it in miniature, Kant overlooks two key arguments in defense of the university.

To resolve these two problems facing Kant's justificatoin of the university in *Conflict*, Fichte and Schleiermacher develop a new vision of community to be realized at the University of Berlin. Their central focus thus lies on the special kind of community (*Gemeinschaft*) and reciprocity (*Wechselwirkung*) unique to the university, its requirements, effects, and conditions of flourishing. This focus is, in turn, a reaction to the ethical and institutional problems endemic to Kant's division of the scholarly and civil communities in *Conflict*. Naturally, each philosopher's view of the university community is inflected by his wider systematic and methodological commitments. Indeed, one could reasonably claim that, in a word, Fichte's community is *closed* whereas Schleiermacher's is *open*, and this basic character reflects their deeper philosophical commitments. However, this is merely an influence, not a derivation or even a direct connection. The most essential feature is their reaction to Kant's division of the two communities. For this reason, it is equally misleading to portray their proposals as being merely spurred by Kant's *Conflict* without specifying the determinate problems in Kant's justification of the university that they seek to overcome, as if Kant were to be responsible for inviting all reflection on such a prominent institution.

Finally, their criticism of Kant should be understood as an *internal* one because it shares Kant's basic premises: that the university ought to be defended against competing models; that the truth-seeking of science is intrinsically valuable; that the scholarly and civil communities ought to be united, and so on. Their disagreement instead concerns *institutional design*: how should the university be arranged, with some level of detail—at what we might call the meso level, sitting in between the “macro” and the “micro”—so that it best realizes its purpose? They contend that, in this respect, Kant has inadequately grasped the means for attaining his desired end.

This article proceeds as follows. In section 2, I will examine Kant's justification of the university in *Conflict* and the separation of the scholarly and civil communities on which it depends. In doing so, I will focus on the work as it was received by his contemporaries rather than Kant's esoteric intentions, evident, say, in his drafts and notes. In section 3, I explicate Fichte's and Schleiermacher's proposals as responses to the ethical and institutional problems arising from Kant's justification of the university. In doing so, I trace not only to the interplay between philosophy and

⁷ On French model of higher education, see Rüegg 2004, (4–12); Charle (2004, 34–35); Schmidt (2013, 160–61, 170–71).

institutional design but also their radicalization of the category of community (*Gemeinschaft*) or reciprocity (*Wechselwirkung*), a defining tendency of post-Kantian philosophy and early German romanticism.

2. Kant's Vision of Community in the *Conflict of the Faculties*

The Conflict of the Faculties (*Der Streit der Fakultäten*) was published in 1798 as a collection of three self-standing “essays” (CF 243/AA 7:11). Each essay purports to address the conflict between the university’s “lower” philosophy faculty against a “higher” one (theology, law, and medicine). In this way, Kant intends them to form a “systematic unity,” as he puts it in the Introduction (*ibid.*). Yet, in the same breath, Kant concedes that the essays were written “for different purposes and at different times” and that he “only later recognized” that they shared the same theme, *viz.*, the conflict between the university’s faculties (CF 243/AA 7:11).

In truth, only the first essay of *Conflict* explicitly deals with this theme and the university as such.⁸ Indeed, Kant’s correspondence makes it clear that he had originally intended to reserve the title “The Conflict of the Faculties” for just the first essay (KC 490–92/AA 11:513–15) and only later decided to combine it with “An Old Question Raised Again: Is the Human Race Constantly Progressing?,” reassuring his publisher that he would “try to write the Introduction to it in such a way that the two parts will compose one book” (KC 544–45/AA 12:240–41). When *Conflict* finally appeared in October of the same year, it had accrued an additional essay on medicine in the form of a letter to the physician C. F. Hufeland. So although the second and third essays do occasionally bear on Kant’s theory of the university, only the first is essential for the purpose of this article.

This first essay, titled “The Conflict of the Philosophy Faculty with the Theology Faculty,” was composed somewhat earlier (1794) and was, by and large, a response by Kant to the censorship of *Religion*. Unsurprisingly, Kant’s central aim in the essay is to defend the *research freedom* of philosophy, asserting its right to publish writings without religious censorship and state oversight. (Kant does not explicitly extend this freedom to teaching and learning, *Lehrfreiheit* and *Lehrnfreiheit*, even in the philosophy faculty.) He does so by providing a *utilitarian* justification for the existence of the university in general and the philosophical faculty in particular, which attempts to show that protecting the academic freedom of the philosophy faculty ultimately furthers the state’s interests, and, conversely, censoring it runs against its interests. The philosophy faculty is justified—deserving of funding and toleration—because its pursuit of truth for its own sake is *useful* to the state.

But before considering this justification in detail, an important qualification must be made. In this article, I presume that Kant’s aim in *Conflict* requires him to justify the existence of the university as such. However, this assumption has been prominently challenged by Pozzo (2001), who argues that in *Conflict* Kant is in no way seeking to provide a universal account of the university, deducing it, as it were, from an idea of reason, but merely to reactualize the *status quo ante* that existed

⁸ The proceeding two paragraphs follow Gregor (1992).

during the reign of Frederick the Great. Thus, according to Pozzo, attempts to reconstruct from *Conflict* a “general ‘theory of a university’” are misguided, and Kant’s *Conflict* should instead be understood as describing the local conditions of his home university in Königsberg, the *Alma Albertina*, not the structure that all universities ought to instantiate (96, 105–6). As evidence for this claim, Pozzo cites, in addition to various correspondences between Kant’s proposed university structure in *Conflict* with the records of course offerings at the *Alma Albertina*, Kant’s unpublished draft Introduction to *Conflict*. In the draft Introduction, Kant explicitly denounces any intention to exposit the “idea of a university in general” (AA 23:430). Pozzo’s considerations appear to place Kant’s *Conflict* in quite a different genre than Fichte’s and Schleiermacher’s texts, which, by contrast, appear to be entirely unconstrained in their proposals for the new university.

Two responses can be given to Pozzo’s line of argument. First, although Kant may have held no intention of giving a general theory of the university in *Conflict*, this was not how his work was received by his contemporaries. Schelling, in his *Lectures on the Method of Academic Studies* (*Vorlesungen über die Methode des akademischen Studiums*), delivered at the University of Jena in 1802, considers Kant’s *Conflict* as an attempt to provide a rational exposition of the faculties, understood as “the sciences” insofar as they obtain “an actual objective existence through the state and within it” (AS 79/SW 1,5:283). According to Schelling, Kant aims to disclose “what is necessary about [the faculties] relations to one another,” an account that is “one-sided” precisely because it justifies philosophy only insofar as it forms an “external power [äußere Macht] [...] privileged by the state” (AS 79–80/SW 1,5:283–84). Similarly, in his famous memo on the University of Berlin, Humboldt sees Kant as popularizing attempts to “deduce [ableiten]” the university from “the idea” (Humboldt 2017, 113/GS 10:256). Undoubtedly, Humboldt refers to the opening lines of *Conflict*, in which Kant unfolds the “notion [Einfall] [...] of a university” (CF 247/AA 7:17) and ties it to the state as based on an “idea of reason” [Vernunftidee] (CF 250/AA 7:21). Whatever his true intentions, Kant’s readers took him to be delivering a general theory of the university in *Conflict*.

Second, a closer look at Kant’s draft Introduction shows that even here the status of Kant’s account of the university is not so different from Fichte’s and Schleiermacher’s. This is because all three philosophers impose what can be called “feasibility constraints” on their accounts of the university, constraints that are inextricable from institutional design. These feasibility constraints widen the scope of considerations beyond just the *desirability* of the designed institution to also include its *viability*—the institution’s capacity to properly function and maintain itself over time—and its *achievability*—the existence of an identifiable pathway to the institution’s realization.⁹ At the same time, such an institutional analysis always requires probing beyond the surface-level existence of the institution to its more basic structure.

Thus, when Kant announces in the draft Introduction that he restricts his exposition of the university as an “actually existing establishment,” he clarifies that he will consider the “idea [Idee] of the university” according to its “plan [Plan] and the reasons that have been given for ordering it as it

⁹ I here follow Wright’s (2010, 20–25) analysis of feasibility. For an alternative clarification of the concept, see Gilabert and Lawford-Smith (2012).

is now (even if it might not be the best),” that is, insofar as this ordering derives from the state’s “intention [Absicht]” in founding it (AA 23:430). It would be misleading to equate Kant’s reconstructed “plan” of the university with the *Albertina* as such. On the other hand, Fichte and Schleiermacher by no means enjoy complete freedom in constructing their proposals but instead constrain themselves with practical considerations. Fichte explicitly concerns himself with the “feasibility” (*Ausführbarkeit*) of his university plan and makes an effort to demonstrate how its different aspects have “actually existed separately in one place or another,” citing Tübingen, Oxford, and Cambridge as examples (DP §57, 241–42/GA 152–53).¹⁰ Similarly, Schleiermacher denounces substituting existing institutions with “something entirely arbitrary,” imploring us instead to “properly understand the significance of these existing forms,” which have “developed in a natural way” and have been “preserved for so long precisely because of [their] naturalness” (OT 33/KGA 1,6:52–53). For example, in treating the “oft decried student lecture fee,” i.e., the *Privatdozent*’s dependence on direct remuneration from students, Schleiermacher seeks to “reconcile” us with this practice by showing it to be “thoroughly connected with the spirit and essence of our universities because it has been preserved so consistently despite many derisive outbursts” (OT 40/KGA 1,6:59), and, in discussing the proper conduct of students, he implores us to focus “less on what ought to happen than on what probably will happen” (OT 40/KGA 1,6:59). So although it is true that, in the draft Introduction, Kant abandons the “task of [showing] how the idea of a university could and should be realized” (AA 23:430), he nonetheless develops a theory and justification of the university in *Conflict* that can be meaningfully compared with Fichte’s and Schleiermacher’s—or at least his contemporaries thought such a comparison was justified.¹¹ With this objection behind us, we can now turn to Kant’s defense of the university proper in *Conflict*.

2.1. Justifying the University

Kant’s justification of the university begins with the state.¹² It is the state, not the university, that, for Kant, ranks among the “artificial institutions based on an idea of reason” (CF 250/AA 7:21) and thus provides the university with its ultimate ground of justification. Throughout *Conflict*, the university is reckoned only as a means that the state “can use for its end [Zweck]” (CF 250/AA 7:21) or insofar as it is “beneficial [ersprießlich]” to the state (CF 261/AA 7:35), contributing to the state’s “advantage [Vorteil]” (CF 260/AA 7:34).

According to Kant, there are two ways in which the university contributes to the ends of the state.¹³ First, the higher faculties *directly* secure the state’s *influence* (*Einfluß*) over the people, an

¹⁰ By contrast, Zöller interprets this passage in Fichte’s *Deduced Plan* along utopian lines, offering a philosophical “counter-image” of the existing university (106), the “university of the future” (121, 114–15).

¹¹ Brandt (1987, 2003, 2017) and Bien (1974) provide extended interpretations of Kant’s *Conflict* as developing a “general theory of the university,” albeit one with “ascetic brevity” (Brandt 2003, 36).

¹² Kant discusses *Regierung*, not *Staat*; however, I assume there is no important difference between the two for Kant in *Conflict*.

¹³ I leave aside the question of whether Kant’s views on the state in *Conflict* cohere with those in his other writings.

influence which appears to the state as a “felt need [gefühltes Bedürfnis],” and to which it therefore has a right (CF 250/AA 7:21). “The government,” Kant observes, “is most interested in that by which it obtains the strongest and most lasting influence over the people, and such are the objects of the higher faculties” (CF 248/AA 7:19; cf. CF 250/AA 7:21; CF 258/AA 7:31; CF 260–61/AA 7:34). As Kant elaborates, the people’s “motives [Triebfedern]” concern their eternal, civil, and physical well-being (*Wohl*)—in a word, their salvation, possessions, and life—which are in turn secured by officials—clergymen, jurists, and physicians—who are trained and regulated by the university’s higher faculties. The higher faculties’ tripartite division is therefore “*nach Vernunft*” and “objective,” corresponding to an “*a priori* principle” insofar as it derives from the distinctive need of the state to influence the people and, so, from the state as an idea of reason.

The lower faculty, by contrast, *indirectly* contributes to the end of the state. Philosophy at the university consists in pursuing truth for its own sake, what Kant variously characterizes as “care for the interests of the sciences” (CF 248/AA 7:18), the “public presentation of truth” (CF 260/AA 7:33), and just “*truth*” simpliciter (CF 255/AA 7:28). Essential to philosophy’s truth-seeking is its practice of critique, the “test of the scholars” (CF 248/AA 7:19). This practice dictates not only that philosophy be, with respect to the state’s teachings, “free to evaluate everything” (CF 249/A 7:19–20) and free “to subject it always to the critique of reason” (CF 287/AA 7:67), but, more strongly, that “the lower faculty has [...] the duty [...] to see to it that *everything* put forward in public as a principle is true” (CF 259/AA 7:32). Philosophy at the university is therefore an essentially truth-seeking and critical enterprise, by which Kant has in mind what we today call basic research within the college of arts and sciences.

Such research, Kant maintains, provides an essential service to the state: true council with respect to its policies. By enjoying its freedom of research and unbridled pursuit of truth, the lower faculty will, in the long run, provide the state with more knowledge and “insight” than it would otherwise have. At least some of this knowledge, Kant contends, will become instrumentally valuable for the state in achieving its ends. This indirect usefulness to the state justifies the existence of the lower faculty. In this way, the lower faculty becomes the higher: precisely because its contribution to the state’s interests is indirect, its contribution to the state’s “paternal purpose,” to use Wöllner’s phrase (CF 240–41/AA 7:6–8), is likely to be greater (CF 261/AA 7:35). Truth proves to be more useful than doctrine.

Now, in order to provide this true council, the philosophy faculty not only requires funding from the state but also freedom from the state’s oversight in its publications and critique. Here Kant evokes the famous slogan “*laissez faire*”—“leave us alone!”—demanding that the state simply “not hinder the progress and insights of the sciences” if it wishes to advance its own interests (CF 249/AA 7:19). If the state censors, interferes with, or in any way impedes the philosophy faculty, it acts contrary to its own interests.

Certainly, there is much to commend in Kant’s argument. Such a policy of freedom in research would have saved Kant’s *Religion* book from censorship, secured his job, and established the necessity of an independent research body funded by the state, all on the basis of the state’s own

self-interest. But while Kant's demand for research freedom and publication appears innocuous to us, it is quite radical for Kant's time. Indeed, Kant and his contemporaries perceived philosophy's freedom to publish its research and criticism to be a grave *danger*. Since the people are easily swayed, philosophy's public and critical questioning of the basic tenets of obedience—the existence of God, the right of resistance—threatens to undermine their submission. Such critical writings, perhaps out of the people's imperfect understanding of them, may cause them to disobey or act immorally. Without a governmental oversight of philosophy's writings, this danger is a real one, and it is especially acute since Kant has justified the university on grounds of its usefulness to the state. Utility might not be bolstered by philosophy's freedom after all.

The severity of this danger should not be overlooked. Today we may smile at the thought of philosophical writings threatening the state's security, but in Kant's day such a danger was considered imminent. Leading philosophers at the time held that the practice of critical thinking—the very activity that Kant sees as inextricable from philosophy—could undermine the state's security. Such freedom in publications, for example, “weakens the moral sentiment and leads to [...] anarchy” (Moses Mendelssohn); “could become a danger to the state” (Carl Friedrich Bahrdt); and may “ignite and inflame” rather than “illuminate and enlighten” (Friedrich Karl von Moser).¹⁴ Kant himself acknowledges the danger of free inquiry throughout *Conflict*, regularly calling the people “incompetent [Idioten],” literally, idiots, unable to think for themselves, and therefore legitimately subject to the state's influence (CF 248/7:18). We may call this Kant's *elitism* in *Conflict*. “[T]here must always be statutory precepts of the government regarding teachings to be set forth in public,” Kant concedes, “since unlimited freedom to proclaim any sort of opinion publicly is bound to be dangerous both to the government and to the public itself” (CF 260/AA 7:33). Kant mitigates this pressing danger by separating the people into what he calls the scholarly and civil communities, a division that is the most notable mark of his justification of the university and that draws the ire of Fichte and Schleiermacher.

2.2. Separating the Scholarly and Civil Communities

Kant mitigates the danger of philosophy's freedom of research and critique by observing that the people do not form a homogeneous bloc but divide into two communities, one “scholarly” (*gelehrt*) and the other “civil” (*bürgerlich*), which in turn form two kinds of “public” (*Publicum*). Philosophy addresses its writings only to the scholarly community, not the civil one; moreover, the civil community takes no interest in philosophy's writings and, even if they did, they could not understand them. The state therefore has no reason to worry about philosophy's influence on the majority of the people, the civil community, since it can expect no uptake by them. The state can thus safely grant philosophy its freedom without risking anarchy.

Here is how Kant summarizes the effects of this separation:

¹⁴ Quoted in Engelman (2023, 4). As Engelman summarizes, “philosophers in Kant's day worried that critical thinking and public communication could be socially deleterious” (17).

The higher faculties [...] must answer to the government only for the instruction and information they give their businessmen to expound to the public; for these circulate among the public [Publicum] as a *civil* community [bürgerliches gemeines Wesen] and, because they could impair the government's influence over it, are subject to its sanction. On the other hand, the teachings and views that the faculties, as theorists, have to settle with one another are directed to a different kind of public – a *scholarly* community [gelehrten gemeinen Wesens] devoted to the sciences; and since the people are resigned to understanding nothing about this, the government does not see fit to intervene in scholarly discussions. (CF 260–61/AA 7:34)

This is precisely the moment in the justification of the university where the later idealists part ways with Kant. For here it becomes evident that, if Kant's defense of the university is to succeed, it must suppose a pernicious *elitism*: not only the indifference but also the incapacity of the civil community with respect to science. This can be seen by considering the contrary: if the scholarly and civil communities were not separate, then philosophy's freedom of research would in fact influence the people, and, indeed, likely in a negative way from the state's point of view. Since Kant's justification of the university rests on its contribution to the utility of the state, such a unification of the two communities would undermine his defense of the university. Yet, for Fichte and Schleiermacher, realizing this unification is precisely the purpose of the university; resting its justification on the very rift that it is intended to overcome strikes them as perverse.

However, before moving to Fichte's and Schleiermacher's internal criticism of Kant, it is worthwhile to first examine more closely Kant's separation of the two communities in *Conflict*, his theory of public reason, and the elitism implied in both of them.

So far, I have left unaddressed Kant's most famous claim in *Conflict*, namely, that the university should be understood “*like a factory* [fabrikenmäßig]” (CF 247/AA 7:17). Here, Kant first introduces the idea of the scholarly community. Organized by a “division of labor” across the various “disciplines [Fächer] of the sciences,” the university, Kant tells us, “constitutes [ausmacht] a kind of scholarly community [gelehrtem gemeinen Wesen]” (CF 247/AA 7:17). As Kant elaborates, this community consists not only of professors, the “proper scholars” and the university students (the “guild” scholars), but also of the active researchers outside the university, such as members of the academies (the “guild-free” scholars) and the university's graduates (the “studied”) working for the state, what Kant variously calls the “*intelligentsia* [Litteraten],” “*businesspeople* [Geschäftsleute],” “practitioners [Praktiker],” and, most revealing, “technicians of scholarship [Werkkundige der Gelehrsamkeit]” (CF 247–48/AA 7:18; CF 261/AA 7:34). These businesspeople are the clergymen, jurists, physicians, and other civil servants that Kant wishes to be controlled by the teachings of the higher faculties. They mediate between the scholarly and civil communities by applying the theoretical “teachings [Grundlehren]” discovered by scholars to the practical contingencies of the case relevant to their office (CF 247–48/AA 7:18). Anyone who has not attended university is *eo ipso* a member of the civil community.

Two features of Kant's separation of the people into the scholarly and civil communities stand out in light of the reception of Kant's defense of the university. First, Kant has a decidedly

negative view on the intellectual and moral competencies of the civil community or “the people” proper, what we have called his elitism. This theme reoccurs throughout *Conflict*. For instance, Kant complains that whatever requires “self-excretion [...] does not suit the people” (CF 257/AA 7:30); that the people “cannot think out their own religious belief *by themselves*, but can only have it handed down to them” (CF 241/AA 7:8); that the people are incompetence vis-à-vis the sciences, being “made up of idiots” (CF 248/AA 7:18).¹⁵ This radical incompetence of the people justifies the state’s paternalism and its censorship of writings that may attract the people’s attention, writings that, because of the people’s immaturity, could “work on its habits, feelings, and inclinations, and so win it away from the influence of legitimate government” (CF 261/AA 7:34).

Nonetheless, it would be unfair to suggest that Kant entirely endorses this state of affairs. Indeed, Kant hopes for an eventual unification of the scholarly and civil communities, and he articulates this hope within his theory of human progress, a central theme in *Conflict*. A future perfected state, Kant reassures us, would grant academic freedom to everyone, not just the scholarly community. For instance, Kant writes that the arguments he has raised in favor of censoring the teachings of the higher faculties are “quite compatible with a concord [Eintracht] of the scholarly and civil community in maxims which, if observed, must bring about a constant progress of both classes of the faculties toward greater perfection, and finally prepare the way for government to remove all restrictions that its choice has put on freedom of public judgment” (CF 261/AA 7:35). In the second essay of *Conflict*, Kant revisits this theme with respect to the people’s reception of the French Revolution. In §8 of that essay, Kant claims that, so long as philosophers ensure the proper “publicity” (*Publicität*) in their “public instruction of the people” concerning natural right, which requires that “their voice is not addressed *confidentially* to the people (as the people take scarcely any or no notice at all of it and of their writings) but is addressed *respectfully* to the state,” then we should expect “the progress of a people toward improvement” (CF 305/AA 7:89). Philosophy’s pursuit of truth can, in this indirect way, by gradually enlightening the people, contribute to realizing a future state, what Kant calls the “republican constitution” (CF 302/AA 7:86; CF 304/AA 7:88). In such a future state, censorship would be unnecessary, as an enlightened people, now governed by reason from within rather than inclination from without, would not be so easily swayed from the duty of obedience. However, in §10, Kant qualifies this progress as emerging strictly “*from top to bottom*” (CF 307–8/AA 7:92–93), namely, as dictated by the state and its officials unilaterally to the people. Fichte and Schleiermacher will challenge this directionality, arguing that part of the justification of the university’s existence rests on its capacity to effectuate human progress bottom-up. By failing to

¹⁵ Brandt (2003, 9) and Pasquare (2024, 440–41) distance Kant from the claim that the people are idiots; the “sad tirade” of treating the people as if they were “cattle, children, and idiots” reflects the viewpoint of the powers that be, not Kant’s. As evidence for interpreting Kant’s elitism in *Conflict* as ironical, they cite Kant’s *Lectures on Anthropology*, in which Kant criticizes the treatment of “lay people” as “idiots” and defends the freedom of the press (LA 103–4/AA 25:541–42; LA 107/AA 25:546). However, this evidence from Kant’s lectures is hardly conclusive; for example, in his *Lectures on Logic*, Kant reiterates his elitism by contrasting scholars (members of the academy of sciences) and lay people (village farmers) on the grounds that the latter rarely err because they rarely judge: “thoughtlessness protects them against errors” (LL 63/AA 24,1:83; cf. LL 10/AA 24,1:22–23; LL 457/AA 24,2:720). Below, I respond to this ironical dismissal of Kant’s apparent elitism.

identify any institutional means for realizing this progress, Kant renders the desired unity between the two communities a mere abstract possibility.

The second notable feature of Kant's two communities is that membership in them is determined by one's *social station*. To be a member of the scholarly community is to be a university graduate; otherwise, one belongs to the civil community. Consequently, membership is mutually exclusive and static. One cannot be a university graduate by day and a non-graduate by night.

Kant's social-station conception of the scholarly community marks a departure from his earlier and more familiar distinction between the public and private use of reason. Kant's theory of public reason, developed most notably in *What is Enlightenment* and *Orientation*, is a *social role* theory.¹⁶ The public use of reason denotes a social role that *anyone* can adopt, regardless of her social station. So long as she directs her arguments to her readers' reasons (not their inclinations) and in the proper medium (published writings), she exercises her reason publicly or acts "*as a scholar*" (WE 18/AA 8:37). It is a dynamic theory, permitting one to use reason publicly at one time or in one respect, privately in another. By contrast, in Kant's new distinction between the scholarly and civil communities, not just anyone can be a scholar; this privilege is reserved for only certain members of the university, closed off to the "great unthinking masses" (WE 18/AA 8:36).

While Kant's departure from a social role defense of freedom in research and publication to a social station justification of the same may appear like a large-scale shift, seeds of Kant's later position lie latent in his earlier one. Throughout *Enlightenment* and *Orientation*, Kant maintains the same dim view of the people, establishing the need for the state to censor popular writings. More importantly, in these texts Kant maintains a sharp contrast between "civil" (*bürgerlich*) freedom and the "spiritual" (*geistig*) freedom of thought (WE 22/AA 8:41–42; Kant 1996c, 16/AA 8:144), which he identifies as two mutually exclusive kinds of freedom. This earlier contrast between civil and spiritual freedom prefigures Kant's later distinction between the scholarly and civil communities, which similarly exclude one another. Kant's new vocabulary in *Conflict* of "communal being" (*gemeine Wesen*), if we presume its connection to the concept of community (*Gemeinschaft*) developed in his critical system, provides further evidence that he intended membership in the two communities to be mutually exclusive and to therefore depart from his older view.

That being said, there are two evident avenues for providing a Kantian rectification of Kant's official position in *Conflict* as I have interpreted it. On the one hand, Kant's separation between the scholarly and civil communities in *Conflict* may be criticized on the basis of his more fundamental commitments in moral philosophy; on the other hand, one may seek to soften this separation itself, such as by doubting Kant's sincerity in making it. Taking the latter route, Pasquare (2024), for example, challenges the shift in Kant's views as I have described it, which he deems the "prevalent reading" (433), arguing instead that Kant's elitism is merely "parodying" the absolutist vocabulary espoused by the state (440). In *Conflict*, Pasquare concludes, Kant turns "absolutist

¹⁶ See Pasquare (2024, 437–38); Engelman (2023, 14–16); O'Neill (2015, ch. 3); Deligiorgi (2005, ch. 2); Peterson (2008, 227–28).

concepts and practices against absolutism itself” by showing how even if we adopt the most dismal view of the people, we can still safeguard the university’s utility to the state and its role in enlightenment (434).¹⁷ Yet, as we have seen, Kant’s elitism predates *Conflict* and was widely shared by other intellectuals of his time, making it difficult to see how its appearance in *Conflict* would now count as parody. At any rate, Kant’s ironical distance from the stated views in *Conflict* was lost on Fichte and Schleiermacher, who took his aim to be to justify the university insofar as it benefits the state, and therefore to be predicated on a sharp division between the scholarly and civil communities. For the latter idealists, Kant broke new ground by taking the university to be a special kind of community. However, they criticized his retreat from the obvious consequence of his insight: that, in principle, everyone should be a member of this community, and, moreover, it is the job of the university to make it so. Let us now consider their proposals for the new University of Berlin, which are best understood as internal criticisms of Kant’s *Conflict*.

3. Two Problems for Kant’s Vision of Community

We have already begun to see some of the cracks in Kant’s justification of the university in the eyes of Fichte and Schleiermacher. This section is dedicated to presenting these criticisms in more detail. Specifically, the latter idealists, I argue, raise two problems for Kant’s argument. First is the *ethical* problem. Kant’s justification of the university rests on a pernicious separation of the scholarly and civil communities, and he fails to identify *in concreto* how the university is to contribute to overcoming this division. Second is the *institutional* problem. Even if Kant’s utility argument successfully legitimates scientific research, it fails to establish that the university, as opposed to other “higher scientific establishments” such as the academies or polytechnical schools, is the optimal institution for performing this task. To remedy this situation, Fichte and Schleiermacher articulate more robust visions of community to be established at the new University of Berlin, thereby radicalizing Kant’s vision of the university community. This new vision of community centers on the university’s effects on its students, on the one hand, and the effects on its researchers and the wider community, on the other. These aspects of the university community are overlooked by Kant and are intended to overcome the ethical and institutional problems facing his justification of the university.

Before proceeding to a more detailed discussion of Fichte and Schleiermacher, it is worth considering the degree to which they knew Kant’s *Conflict*, as this is an issue that is occasionally

¹⁷ According to Pasquare (2024, 440), Kant’s scholarly and civil communities (CF 260–61/AA 7:34) function just like expanded versions of his earlier distinction between the public and private use of reason. Whereas the earlier distinction pertained to individuals, the later one pertains to communities. Consequently, the very same community of citizens can now be scholarly, later civil. However, in the same paragraph, Pasquare rightly observes that “the scholarly community comprises university professors as well as any citizen capable of devoting themselves to the sciences.” But this makes this community, even if dynamic, a very small and exclusive one indeed, inaccessible to almost everyone, which concedes my point regarding Kant’s elitism.

contested in the literature.¹⁸ Clearly, if they were entirely ignorant of the text, then my contention that their proposals levy an internal criticism against it would be put into serious doubt. However, there is good evidence that Fichte and Schleiermacher knew *Conflict* reasonably well. For Schleiermacher's part, there can be no doubt that he was familiar with *Conflict*. As the anonymous reviewer of Schelling's *Lectures on the Method of Academic Studies* (1804), Schleiermacher explicitly refers to *Conflict*, complaining of Kant's "loose deductions" therein, and that Schelling "should rather not have mentioned it out of respect for the veteran" (KGA 1,4:465–67). In *Occasional Thoughts*, Schleiermacher rehearses (and rejects) Kant's line of argument regarding the relation between the faculties, evincing that he knew *Conflict* fairly well (OT 33–34/KGA 1,6:52–54). The evidence in Fichte's case is also compelling. In his "Announcement of the Appeal to the Public" (1799), issued in response to charges of atheism in Jena, Fichte cites Kant's preface to *Conflict*, in which Kant recounts the censorship of *Religion* (GA 1,5:363). In the *Appeal to the Public*, Fichte follows Kant's model in *Conflict*, first reproducing the electoral rescript and then responding to it point by point (GA 1,5:415).¹⁹ In *Deduced Plan*, Fichte speaks of the "businesspeople [Geschäftsleuten] involved in civil life (DP §11, 185/GA 2,11:97), likely alluding to Kant's use of this term in *Conflict*. More generally, it would be odd for two self-proclaimed Kantians to fail to take notice of a writing by Kant that was not only reviewed in the major literary periodicals, but also analyzed by luminaries such as Herder, Nicolai, and Schelling.²⁰ Thus, we can reasonably conclude that Fichte and Schleiermacher were familiar with *Conflict*. We can now turn to the two problems they raise against it.

3.1. The Ethical Problem

Both Fichte and Schleiermacher accept Kant's theory of human progress and its promise of an eventual convergence of the scholarly and civil communities. But they depart from him by identifying the university as having a concrete role to play in facilitating this progress and that this role also contributes to its justification. This role consists in forming the student herself, her education to *Wissenschaft* and its knock-on effects—dimensions of the university unexamined by Kant—summarized by the dual values of *Bildung* and accessibility. To advance these aims, they advocate for a more radical vision of community to be established at the University of Berlin than Kant's "scholarly" one, in which students and teachers form a "learning organic whole [lernenden organischen Ganzen]" (DP §11, 81/GA 2,11:97) or a "community of knowledge [Gemeinschaft des Wissens]" (OT 5/KGA 1,6:23; cf. LPE §146, 81/E 107). To better understand the sort of university community they envision, we will examine each of these values in turn.

For both idealists, the university is distinguished from the lower schools because it inculcates in them not knowledge of various subjects but the *capacity to think in general*—what we today call

¹⁸ For example, Brandt (1987, 39) claims that Fichte and Schleiermacher "appear not to have known" Kant's *Conflict*.

¹⁹ Fichte is also reminded of *Conflict* in a 1799 letter by Schelling (GA 3,4:70).

²⁰ Brandt (1987, 66–72) records 11 published reviews of *Conflict* by 1801, and notes its uptake in 9 other publications between 1799–1804.

critical thinking. For Fichte, this capacity is termed the “*art of using the understanding scientifically*” [Kunst des wissenschaftlichen Verstandesgebrauches] (DP §5, 175/GA 2,11:87; cf. ET 261/GA 2,9:360), by which he understands the student’s ability to creatively learn new areas of knowledge, grasp its position within the totality of science, and apply it to novel cases.²¹ In university education, “the final aim,” Fichte insists, “is not knowledge, but rather the art of using knowledge” (DP §5, 174/GA 2,11:86); it aims “not at learning, but at the formation [Bildung] of the ability to learn” (DP §5, 175/GA 2,11:87). Graduates of the university must become “*artists in learning*”; their degrees can thus only be “Masters of Art,” the singular art of learning (DP §44, 227/GA 2,11:138). Similarly, for Schleiermacher, university education consists in “learning to learn” (OT §2, 60/KGA 1,6:35). As Schleiermacher elaborates, this focus on students’ skills and disposition, rather information as such, explains why students need less time to complete their university studies compared to their long duration in the lower schools (OT 17/KGA 1,6:35). For Fichte and Schleiermacher, university instruction is not so much a matter of learning facts, but of cultivating a certain disposition and capacity vis-à-vis knowledge as such.

That being said, Fichte and Schleiermacher do identify a particular subject-matter that is essential to university instruction: the philosophical encyclopedia. While specialization in the “real” (Schleiermacher) or “empirical” (Fichte) sciences is open to students later in their studies (OT 17/KGA 1,6:36; DP §44, 224/GA 2,11:135–36), they must begin their university education with an overview of the systematic totality of knowledge. This overview is best gained by surveying the basic outlines of each discipline in encyclopedic form, which, because it identifies the interconnectedness of science, expresses the genuine “philosophical” (Fichte) or “scientific” (Schleiermacher) “spirit” (DP §19, 194/GA 2,11:105–6; OT 17/KGA 1,6:36; cf. OT 24/KGA 1,6:43).²² If science constitutes a systematic whole, such that each discipline (*Fach*) can only be understood in its relation to the others, then its propaedeutic can only be encyclopedic. Although complete, this encyclopedia is not exhaustive; it must leave the details of each domain to the particular sciences themselves, which are by their nature inexhaustible. For Fichte, students should hear lectures on the *Wissenschaftslehre*, as the “science of science,” as this general science reflects not only on the possibility of thinking as such, but also provides the first principles for each particular science (GA 1,2:117).²³ For Schleiermacher, it is “dialectic” to which students should be exposed, which, as the “organon of all the sciences” (SD 7/KGA 2,10:8) also includes an “architectonic” of their first principles (SD 1/KGA 2,10:5). Such

²¹ On *Bildung* as involving the capacity for critical thinking, see Schmidt (2013, 168); Gjesdal (2015, 704–5); Zöller (2008, 110).

²² On the nineteenth-century German reception of the renaissance and French idea of the encyclopedia, see Wellmon (2015, 77–107, esp. 96–101).

²³ While Fichte never completed the encyclopedic version of the *Wissenschaftslehre*, he undoubtedly intended it to be possible. In the *Wissenschaftslehre nova methodo*, Fichte outlines a system that treats nature, ethics, right, religion, and aesthetics (WLnm 467–74; GA 4,2:262–66). Later in his Berlin period, Fichte boasts that the *Wissenschaftslehre* “is able to provide all the other science with their first principles and guidelines” (GA 3,5:222–24), and that, for each science, “the principles of its possibilities lie in another, higher science,” namely the *Wissenschaftslehre* (Fichte 2005, 39/GA 2,8:49). After hearing lectures on the *Wissenschaftslehre*, students should be able to “treat the particular subjects of science actually in accordance with its rules” (DP §19, 194/GA 2,11:106; cf. James 2014, 486–89, 504n55).

dialectic, Schleiermacher contends, provides students an “immediate intuition of reason and its activity,” in which the “supposed opposition between reason and experience, between speculation and empiricism is destroyed,” thereby opening up students to specialized study of nature and history *through* philosophy (OT 27/KGA 1,6:46–47).²⁴ By 1811, Fichte and Schleiermacher would offer competing lectures on these philosophical foundations of science at the newly established University of Berlin—scheduled at the same time (KGA 2,10:xxvi–xxvii). In sum, encountering the philosophical encyclopedia constitutes students’ introduction to *Wissenschaft*, in which not only the knowers but knowledge itself forms a community.

The community of scientific material to be assimilated by students is also reflected in the communal form of its reception. For both Fichte and Schleiermacher, it is essential that students at the university constitute a unified student body (DP §8, 177/GA 2,11:89; OT 28/KGA 1,6:48). They do so by engaging in reciprocal communication (*Mitteling*) and collaboration (*Mitwirkung*) with one another and with the teacher (OT 1/KGA 1,6:19; DP §8/GA 2,11:89; ET 261/GA 2,9:360). Formation of this scientific community occurs not only in the lecture hall or seminar room but throughout the university, including the students’ residences. It is therefore imperative that students temporarily be separated from their ordinary lives, especially their parents’ homes. For this reason, both Fichte and Schleiermacher argue that it is preferable for students to travel to Berlin from other cities; special care must be taken to ensure that Berliners are sufficiently independent of the influence of their family (DP §10, 182/GA 2,11:94; ET 262/GA 1,10:364; OT 76/KGA 1,6:96–97). This community of students exhibits three characteristics salient to remedying the ethical problem facing Kant’s justification of the university.

First of all, establishing this community requires new instructional methods. Both Fichte and Schleiermacher include “discussion periods” (*Conversatorien*), in addition to “lectures” and “seminars” (OT 31/KGA 51; OT 41/KGA 1,6:60). Even lectures must not merely present information—and certainly they should not merely recite what can be found in books—but aim at “dialogue” with students, in which listeners take on an active, participatory role in the living reproduction of knowledge, inspired by the practice of the ancients (OT 28–32/KGA 1,6:48–50). For Fichte, the entire university’s community forms one “invisible” and “Socratic dialogue” (DP §9, 178/GA 2,11:90; cf. DP §7, 177/GA 2,11:89), in which teachers have a “life of interaction [*Wechselleben*] with their students” (DP §21, 195/GA 2,11:107); and, for Schleiermacher, it is a “shared scientific life [*wissenschaftliches Zusammenleben*]” (OT 29/KGA 1,6:48) in which teachers have an “existence in common [*Zusammenseins*] with the novices” (OT 30/KGA 1,6:49).

Second, Fichte and Schleiermacher place language (*Sprache*) at the center of their accounts of the university’s student community and, indeed, science as such. Schleiermacher is the most explicit about this connection between language, science, and community. For him, because science is an inherently communal effort, it is also inherently linguistic (OT 3/KGA 1,6:22). Each language retains its distinctive character, its unique habits of thought, that cannot be “transferred in exactly

²⁴ On Schleiermacher’s dialectic as his “metaphysics,” see Arndt (2010); Frank (2005).

the same way into another language” (OT 4/KGA 23);²⁵ care for the study of ancient and modern languages, in a word, philology, is thus central to the university (OT 27/KGA 1,6:47), and, for the same reason, German, not Latin, should be the language of instruction and examination (OT 64/KGA 1,6:83–84). Students’ formation is thus to be effected by their participation in “mutual communication” throughout the university (OT 29/KGA 1,6:48). Fichte shares Schleiermacher’s commendation of the vulgate (DP §45, 227–28/GA 2,11:138) and the linguistic dimension of the student community, calling for “continuous conversation [fortlaufende Unterredung]” among the students and teachers (DP §7, 177/GA 2,11:88; cf. DP §8, 177/GA 2,11:89; DP §11, 185/GA 2,11:97) and requiring proficiency in communication for doctoral candidacy (DP §44, 225/GA 2,11:136).²⁶

Finally, for Fichte and Schleiermacher it is essential for everyone to be given the opportunity to be students at the university—that there be the “most widespread scientific formation [wissenschaftliche Bildung] as possible (OT 7/KGA 1,6:25). To be sure, because of the great difficulties of scholarship, the scientific spirit cannot be said to “arise in everyone” (OT 24/KGA 1,6:43) or be “expected of all” (DP 186, §12/GA 2,11:97–98). This paucity of scientific talent, along with the scarcity of educational resources in their time, lends their argument for universal access to the university an epistemic character. Success in science requires not only great talent and mental ability but also a certain capacity for creativity and critique. These skills are not only rare but also difficult to discern in youths, especially since their opportunities for demonstrating these skills in the lower schools are limited by the mechanical instruction therein. Everyone of some merit, then, should be welcome to study at the university, to test their scientific mettle, as it were, in the forge of academic freedom; the minority of students who find themselves called to scientific life can continue on at the university, while the remaining graduates can seek posts in civil society or in the state as civil servants. Because university education concerns the formation of the student as such, it is beneficial even for those students who do not wish to become scholars themselves (OT 26/KGA 1,6:44–45). In order to make these benefits truly accessible to everyone, Fichte and Schleiermacher propose robust systems of financial aid (DP §§51–52, 237–40/GA 2,11:145–49; OT 42/KGA 1,6:62), which would, as Fichte puts it, ensure that “every talent, even without any equivalent in money, finds development with us” (DP §51, 237/GA 2,11:147). Fichte and Schleiermacher thus do not merely hope for everyone to take an interest in science but hold the university responsible for initiating the public, as many and as far as possible, to this standpoint.

Although our discussion of their *Bildungsideal* has been brief, we can nonetheless glean how it is intended to overcome the ethical problem in Kant’s justification of the university. By participating in the “community of knowledge” (Schleiermacher) or the “spiritual communal life” (Fichte) to be established at the university, students acquire a certain kind of scientific disposition, one which is conducive to collaboration, mutual communication, and mutual respect. This disposition, they

²⁵ Thus “true community would take place only among those who speak a common language” (OT 6/KGA 1,6:25).

²⁶ Clearly, Fichte’s and Schleiermacher’s remarks on language’s role in higher education are connected to their theories of language. However, I cannot explore that connection here.

contend, can only arise by participating in the communal project of seeking knowledge for its own sake. This education at the university should in principle be open to everyone, and, in the course of human progress, all future members of the civil community should come to attend the university, even if they have little interest in becoming scholars themselves (DP §11, 181/GA 2,11:97). In this way, Kant's posited gulf between the civil and scholarly communities is gradually bridged, as members of each community enjoy a "shared common life" at the university, ameliorating possible conflict between the two communities not only because graduates retain a memory of the experienced unity throughout their lives but also because they are now equipped to be life-long participants in scientific research and communication. Moreover, the university's gradual overcoming of the separation of the two communities occurs precisely in the manner condemned by Kant in *Conflict*, namely, as "bottom-up" progress (CF 307–8/AA 7:92–93). This popularization of higher education vitiates Kant's elitism.²⁷

3.2. The Institutional Problem

Having established the importance of the values of *Bildung* and accessibility in overcoming the separation of the scholarly and civil communities posited by Kant, there remain two further questions raised by Fichte and Schleiermacher that are overlooked in Kant's justification of the university: first, why should we think that the university is the *best institutional means* for realizing these values? Second, what are its *institutional effects* on researchers and wider society? The idealists' answers to these two questions are interrelated: the university's institutional desirability is due partially to its effects on research and society that only it can bring about. That being said, they also identify features intrinsic to the university itself that make it a necessary institution of modern society.

Regarding the first question, the idealists aim to justify the university's claim to being the optimal institutional means for attaining its purpose—actualizing student *Bildung*, on the one hand, and benefiting research and society in its distinctive way, on the other—by focusing on its indispensable role as an intermediary educational institution. Like Humboldt, Fichte and Schleiermacher see the division of education into its three institutions—the school, the university, and the academy—as pertaining to "the nature of the matter [Natur der Sache]" itself (Humboldt 2017, 118/GS 10:141; cf. Humboldt 2017, 113/GS 10:256; DP §13, 187/GA 2,11:98–99; DP §56, 241/GA 2,11:152; OT 15/KGA 1,6:34; cf. LPE §165–70, 84–85/E 111–13). Their contention is that *Bildung* and its concomitant effects can only be realized in such an intermediary institution. Critique and basic research, for instance, can occur only at the university. Schools must present facts without critique, and the academies ought to digest new discoveries on the basis of shared

²⁷ To be sure, Fichte and Schleiermacher retain some of Kant's elitism vis-à-vis the people. For example, Fichte holds biblical exegesis to be a "scholar's task" which accordingly "does not belong before the people" (DP §26, 206/GA 2,11:117). For Schleiermacher, it even pertains to the "scholar's function" to "ensure that the opposition between scholars and the public remains permanent" (LPE §167, 84/E 112). However, the latter idealists (i) identify this to be an essentially relative opposition, and therefore avoid condemning the public to intellectual incompetence and (ii) institutionally design the university so as to overcome this separation.

philosophical foundations. This basic idea, that the university is necessary because of its mediating institutional role, underlies their justification of it. But this seemingly abstract resolution of the institutional problem—unaddressed Kant—is also a response to two aspects of the social conditions prevailing in their day.

The first of these conditions was the general state of decay afflicting universities in Germany since the beginning of the eighteenth century. The German Enlightenment had not looked kindly on universities. The poor behavior of their students, the guild-like and self-serving mentality of their faculty, and the decreasing relevance of their oral method of instruction in view of the printed book all pointed in a negative direction. Universities were generally held by intellectuals and government officials alike to be in disarray, facing stiff competition from other educational institutions and models.²⁸ Students had taken notice of this state of affairs: enrollments declined 34% between 1720 and 1800 and by 15% between just 1790 and 1800 (Turner 1974, 498). By the turn of the century, nearly all discussions of the German university began by decrying their current state and the dire need for intervention. Neither was it assumed that this intervention must take the shape of reform. For instance, one contemporary complained, “The ill cannot be healed. It lies in the essential form of the universities, which can only be abolished with universities. All attempted cures past and future are only palliatives that just conceal the damage from us.”²⁹ Reforming the university was not the obvious path forward—abolition loomed.

With this context in mind, it is unsurprising that Fichte and Schleiermacher begin their proposals in a defensive posture. Fichte minces no words: “What the [the university] has hitherto been no longer has the right to exist” (DP §5, 175/GA 2,11:87). Schleiermacher, for his part, lands on “superfluous” (*überflüssig*) to characterize the prevailing opinion of the university (OT 15/KGA 1,6:34).³⁰ The idealists explain this decline of the traditional university primarily in technological terms, namely, with the rise of the printed book. While the oral dictation of scholarly manuscripts, i.e., the traditional university lecture, could go some way to justifying the existence of the university before the wide-spread availability of print books, merely repeating what can now otherwise be read in books hinders the university’s aim of introducing students to science. “Such a repetition of what is far better in another form,” Fichte complains, “is at first superfluous and then harmful in its consequences, and should not exist at all; therefore the universities, if they could be nothing else, should be abolished immediately” (DP §4, 173/GA 2,11:85). For Schleiermacher, such repetition is only the “empty form” of lecturing, and should be forbidden at the new university (OT 31/KGA 1,6:50). The remedy, as we have seen, is the *dialogical* lecture, reimagined as a mutually communicative activity. University instruction is no longer a means of disseminating information,

²⁸ On the decline of the university in 18th-century Germany, see Wellmon (2015, 161–69); McClelland (1980, 63–68); Turner (1974, 497–505).

²⁹ Quoted in Wellmon (2015, 163). The commentator was Joachim Heinrich Campe, the *Hofmeister* for the Humboldt brothers.

³⁰ So does Fichte in his *Erlangen Universitätsplan*: “In this way, the academy [i.e., the university] merely repeats the contents of books and that in a very strange and imperfect manner; and thereby it becomes quite superfluous [*überflüssig*]. If, therefore, the academy is to actually exist, it must achieve something which neither a book nor anything in the world but itself can achieve” (ET 261/GA 2,9:359–60).

what both proposals denounce as mere mechanical learning (DP §5/GA 2,11; OT 25/KGA 1,6:44), but aims to develop the students' scholarly capacities—the practice of critique, on the one hand, and an appreciation of the interconnectedness of knowledge and the circle of its basic principles, on the other—in a word, students' *Bildung*. In the institutional register, the university can evade threats of its abolition only if it adopts this new orientation towards *Wissenschaft* and *Bildung*, two values that can in turn be realized only by such an intermediary institution.

But this “intermediary” argument in favor of the university does not yet sufficiently justify it. This is because even if we grant the necessity of a “middle” institution within higher education, it remains unsettled that the university, as opposed to alternative models of this mediating institution, should serve this function. Most prominent among these alternatives was, of course, the French model of specialized higher schools advanced by Napoleon. This alternative model of a “middle” educational institution was markedly different from the university proposed by Fichte and Schleiermacher, most notably because it replaced the universities with specialized professional schools (*écoles*) that stood between the lower *lycées* and the higher *académies*.³¹ Here, then, enters the second aspect of the prevailing social conditions essential to the formation of Fichte and Schleiermacher's proposals, namely, their *nationalism*, expressed in their concern with the ‘Germanness’ of the university model.³²

Undoubtedly, this nationalist desire to oppose the French model with a distinctively German one centrally occupies Schleiermacher. The idea of the “German sense” of the university is not only represented in the title of his work. In an important passage, Schleiermacher writes that those who deem the university superfluous lack “a genuine German sense; for this view is the prevailing one of another people, which, the more it consolidated itself within itself, the more everything that resembles a university ran out, and nothing remained but schools and academies in countless numbers and in the most varied forms” (OT 15/KGA 1,6:34). In his correspondence, Schleiermacher confirms that his primary aim in *Occasional Thoughts* was to provide a defense of the German model of higher education against the French one.³³ A critical stance toward the French model can also be detected in Fichte's proposal. Fichte self-consciously appropriates the title “*Akademie*” for his university, opposing this genuine “ancient sense [antiken Sinne]” of the term to its degenerate “French sense” (DP §4, 173/GA 2,11:86; DP §42, 222/GA 2,11:133), and sees his proposal as extending the university in the “traditional German style [hergebrachtem deutschem Schlage]” (DP §57, 242/GA 2,11:153). And, as we have seen, there remains a linguistic element of this nationalism, the celebration of both idealists of “our splendid German language” (DP §45, 228/GA 2,11:139).

Put in this context, it becomes evident that nationalism also partially motivates their critique of Kant's utilitarian justification of the university. If the university's legitimacy rests only on its utility

³¹ See n. 7.

³² For a compelling discussion of this issue in Fichte, see James (2010).

³³ “My main intention, however, was only to create a contrast between the German universities and the French special schools quite clearly, and to make the value of our native form plausible, without directly polemicizing against the other” (quoted in Arndt 1996, 1196–97).

to the state, and, in the case of the lower faculties, this utility in turn derives from its truth-seeking—that is, if we abstract away from the effects of the university community on students, researchers, and society writ large—then it would appear that an array of specialized schools and academies could very well be a superior model of higher education, if only because they are more specialized and therefore more efficient. The threat of the French model and its elimination of the university looms over both proposals. Fichte’s and Schleiermacher’s retort against the specialized French model stresses that the *universality* of the university coincides with its fourfold community—of knowledge, of students, of research, and of society writ large. We have already examined the first ethical import of the first two communities; now we will examine the effects of the last two.

The first communal knock-on effect at the university concerns the famed *unity of teaching and research*, an essential pillar of the Humboldtian university (Humboldt 2017, 113/GS 10:256–57). Although Fichte and Schleiermacher do not deploy language as concise as Humboldt to describe this unity, they certainly endorse it. Put simply, this doctrine holds that the researcher’s teaching duties, rather than detracting from her scientific task, enliven it and impel it. They endorse this doctrine despite recognizing that university teaching, “living with youth eager for knowledge and stimulating them in all kinds of ways” (OT 21/KGA 1,6:40), is a time-consuming occupation (DP §54, 239/GA 2,11:150; DP §40, 219/GA 2,11:130; cf. OT 47/KGA 1,6:65–66).

Fichte and Schleiermacher hold that university teaching spurs research for two reasons. First, it pertains to the “art of lecturing” that, by repeating one’s course through knowledge in front of a critical audience, the researcher reformulates her thoughts and improves them. For any “true master of science,” Schleiermacher contends, “no repetition is possible without some new combination enlivening oneself, a new discovery drawing one to it; one will always be learning by teaching, and will always stand as living and truly producing before one’s listeners” (OT 30/KGA 1,6:49). Fichte similarly remarks that, in lectures, university teachers have long “communicated orally their struggle for something more perfect, in order [...] by this interaction [Wechselwirkung] with others to become clear in themselves concerning the proposed book” (DP §3, 173/GA 2,11:85). University lectures provide numerous opportunities for this productive repetition. Second, because of the special character of this audience—youths introducing themselves to science, some of whom are themselves budding researchers—and the regularity of the teacher’s interaction with it, especially in the subject-specific seminars (OT 40–41/KGA 1,6:60–61), university teaching provides an especially ripe environment for fostering fresh research, outstripping the society of masters, i.e., the academy, on the dimension of novelty. The special kind of community to be established at the university thus provides a further benefit overlooked by Kant: it facilitates research.

The second knock-on effect of the university community is its capacity to be a vanguard or model institution for the rest of society. Both idealists deploy quasi-religious vocabulary to describe this higher purpose of the university, as if it were a secularized monastery, a scholarly city on a hill. The university’s is a “higher” and “sacred” purpose (Fichte), a “sanctuary” of science (Schleiermacher). They justify their use of religious vocabulary by portraying the university as proof that spiritual, communal life in the name of higher values is not only possible but actual, the visible scientific union. Ascription of such lofty aims to scholarship will be familiar to readers of Fichte.

Throughout his writings on the “scholar’s vocation,” he regularly asserts the ethical dimension of this estate (*Stand*), writing, for example, that “the scholar ought to be the ethically best man of his time” (Fichte 1988, 176/GA 2,9:58; cf. Schmidt 2012, 167). In *Deduced Plan*, Fichte similarly posits that the estate of scholars has the “duty of appearing before the nation as noble and moderate, not as insatiable and greedy men; and this disposition must be inculcated in them in every way” (DP §53, 239/GA 2,11). But what is striking in both idealists’ defense of the university is their focus on the ethical effects of the special kind of *community* to be established at the new university, not merely of the virtues of the individual scholar.

We have already mentioned how Fichte and Schleiermacher understand science to be an intrinsically communal undertaking, essentially marked by collaboration and communication. Their reasoning is simple. Since knowledge (*Wissen*) forms a systematic whole, such that each of its branches garners its validity and meaning only in relation to the other branches and to the whole itself, it follows that no single researcher can exhaust this totality alone. Thus, the systematic investigation of knowledge (*Wissenschaft*) must be cooperative. This necessary union of interests among researchers perhaps makes science the *most* longstanding and successful community known to human history: “In scarcely any other area of human action is there such an extended community, such a steady progression of tradition from the very outset, as is to be found in science” (OT 2–3/KGA 1,6:21). Moreover, because science is essentially communal, we may also infer, according to Fichte and Schleiermacher, that it is *public*, “present in cultured peoples as a whole as their communal work [gemeinschaftliches Werk] and possession” (OT 12/KGA 1,6:31). As Fichte puts it, science belongs to “the living spirit of the age,” not to any particular person (DP §62, 248/GA 2,11:159). The communal nature of research and teaching, best realized by the intermediary institution of the university, thus provides the people with a vanguard model of a unified community to be realized politically, deriving from their own common and public intellectual activity.

Both Schleiermacher and Fichte give the university’s scientific vanguard community an explicitly political bent. Schleiermacher announces in the context of German unification that “the community in which [German] states must stand should nowhere be expressed more intimately than in scientific matters,” turning the university’s community of science to a “preparatory means” (*Vorbereitungsmittel*) for national political unity (OT 7/KGA 1,6:25). This community, he contends, exhibits precisely the kind of “inner unity” that the German states should realize (*ibid.*), making it not only a “transition point” for students (OT 16/KGA 1,6:35), but for society as well (OT 80/KGA 1,6:100). Throughout *Deduced Plan*, Fichte similarly intimates that the university provides a model of community for politics. He concludes his proposal by observing that the university provides an “image” (*Bild*) of both domestic and international political unity, exhibiting the unity of divided political power at home and peaceful competition abroad (DP §67/GA 2,11:169). Striking in both proposals is the future orientation of the university’s community: its kind of unity proceeds in advance of the society, serving as “preparation” (Schleiermacher) or “prophecy” (Fichte) for this wider-spread political unification (DP §67, 258–59/GA 2,11:169–70; OT 56/KGA 1,6:75–76). Laying aside their nationalism, it is clear that both proposals see the progress of humanity, including the bridging the gap between the scholarly and the popular, as a matter to be actualized from the

bottom-up *by the university itself*, as the best-positioned institution for undertaking such a unification, precisely in the manner Kant prohibited in *Conflict*. In portraying the university as the “radiant arc of the covenant which arches in bright heights over the heads of the trembling peoples,” we have come a long way from Kant’s elitist justification of the university (DP §67, 259/GA 2,11:170).

4. Conclusion

By way of conclusion, I will briefly reconnect Fichte’s and Schleiermacher’s justification of the university with Kant’s and outline two proposed shifts in how we should understand this relationship.

In the previous section, we saw that despite not knowing the details of each other’s proposal,³⁴ Fichte and Schleiermacher are remarkably aligned along three dimensions: first, they raise and resolve two problems for Kant’s justification of the university, which I have named the ethical and institutional problems; second, in posing these two problems, they undertake internal criticism of Kant in his justification of the university by demonstrating that his own assumptions about the value and purpose of the university should propel him beyond the normative limitations posed by his elitism; and, third, that both of these internal criticisms turn on the distinctive kind of community to be established by the new university.

The ethical problem targeted the separation of the scholarly and civil communities essential to Kant’s safeguarding of philosophy’s research and publication freedom, which was in turn necessary to secure the utility of its truth-seeking, its contribution to the ends of the state. Rather than premising the university’s justification on this separation, it is instead the specific task of the university to overcome it by (1) cultivating the educated disposition (*Bildung*) of its students, training them in critical thinking and inducting them to the totality of knowledge, and (2) ensuring that higher education is available to as many people as possible, regardless of one’s family background and without the expectation that everyone become a scholar. Both idealists anticipate that these policies would produce a growing body of competent graduates, mostly employed in commercial society or as governmental bureaucrats, who both understand and value science, thus gradually bridging the gap between the scholarly and civil communities.

Having demonstrated the need for higher education, the institutional problem took aim at Kant’s inability to justify the university as the optimal institution for fulfilling this purpose. Here, the central challenge was the alternative French model of higher education, the system of specialized schools and polytechnical institutes, which might better realize the ends of truth-seeking (research) and *Bildung* (teaching). Both idealists’ defense of the university as the appropriate intermediary educational institution turned on the capacity of its distinctive community to impel research (the

³⁴ Fichte read Schleiermacher’s *Occasional Thoughts* only later, in 1812 (GA 3,7:224–28). Fichte’s proposal remained unpublished until after his death. Schleiermacher did not know it, but would have been familiar with Fichte’s *Erlangen* proposal and writings on the vocation of the scholar (KGA 1,6:41; Crouter 2005, 148; Arndt 1996, 1197–98).

unity of teaching and research) and serve as a model of unity for the rest of society (vanguardism). By appreciating these knock-on effects of the university community, which in turn reflects the total community of knowledge present at the university *in vivo*, we can see that the university is the best intermediary educational institution for the job.

If my proposed reconstruction captures the essence of Fichte's and Schleiermacher's proposals, then two modifications of our understanding of them are in order. First, returning to the scheme of interpretations sketched in the introduction, we should conclude that, in determining the proposals' basic character, Kant's negative influence triumphs over the explanatory alternatives, namely, sociological factors, basic theoretical commitments, and methodological considerations. Kant's apparent elitism, manifested in his separation of the scholarly and civil communities and his inattention to the special benefits of the university community, set the principal issues to be resolved in each proposal. While the remaining three dimensions are undoubtedly present—and we have referred to them continuously in our exposition—they generally serve to resolve these two problems posed by Kant and should therefore be subordinate to the latter as explanatory factors in any interpretation. In understanding Fichte's *Deduced Plan* and Schleiermacher's *Occasional Thoughts*, Kant's *Conflict* remains the decisive touchstone.

Second, it follows that the similarities between the two proposals are at least as significant as their differences. Most scholarship comparing *Deduced Plan* with *Occasional Thoughts* has sought to identify their fundamental dissimilarities, usually along the three dimensions already mentioned. But in a commendable effort to spell out these differences, commentators have overlooked the radical continuity of these proposals, which, again, is to be explained by the idealists' dissatisfaction with Kant's defense of the university in *Conflict*. At the heart of their forays into institutional design is the task of internal criticism, which explains the major contours of their proposals. There are, of course, important differences in their proposals that, for reasons of space, have been omitted in this article. But my contention has been that this focus on differences is one-sided and should be supplemented by consideration of their relation to Kant's justification of the university in *Conflict*, even if the latter's influence is primarily negative.

By focusing instead on the similarities of their proposals, we see that Fichte and Schleiermacher are engaged in the shared practice of institutional design. Their task is to determine the optimal features of the university as a meso-level social structure and to establish the feasibility of its continued existence, while also defending it against competing visions of the same structure. In doing so, they examine the university's capacity to affect student and social transformation, primarily in terms of the Kantian categories of community and reciprocity. Beyond merely asserting the intrinsic value of higher education, Fichte and Schleiermacher deploy these categories to demonstrate the collective nature of knowledge, the collaborative nature of science and research, and the unifying political value of the university. So long as designing the institutions of higher education remains a pressing one for philosophy today, it is worthwhile to revisit their attempts at this difficult and peculiar task.

5. References

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